

24VECV00023 24VECV00023

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-02

Motion: DEFENDANT EVAN VALLE, M.D.'S MOTION FOR SUMMARY JUDGMENT

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Case Number: 24VECV00023 Hearing Date: September 2, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ANTHONY SANCHEZ,

Plaintiff,

vs.

PROVIDENCE HOLY CROSS MEDICAL

CENTER; CORRINE KVAMME, M.D.;

EVAN VALLE, M.D.; RAMIN

GANJIANPOUR, M.D.; AZMI ATIYA,

M.D.; DONALD DESANTO II, M.D.; NEIL

SARDESAI, M.D.; AND DOES 1 through

100, inclusive,

Defendants.

CASE NO: 24vecv00023

[TENTATIVE]

ORDER RE:

DEFENDANT

EVAN VALLE, M.D.'S

MOTION

FOR SUMMARY JUDGMENT

Dept. W

8:30 a.m.

September 2, 2026

[TENTATIVE] ORDER: The Court GRANTS

Moving Defendant's Motion for Summary Judgment.

Background

This is a medical malpractice case. On October 12, 2022, Plaintiff Anthony Sanchez was severely injured when his girlfriend drove her car into him, pinning his legs against a second, stationary vehicle. Plaintiff was admitted to Defendant Providence Holy Cross Medical Center for treatment for his injuries. Plaintiff was treated by multiple doctors, including Moving Defendant Evan Valle, a critical care surgeon.

Plaintiff underwent multiple separate surgeries during his admission to Providence Holy Cross. First, on October 13, 2022, doctors performed a femoral bypass graft on Plaintiff's left knee in an attempt to restore blood flow to Plaintiff's foot. On October 18, 2022, doctors once again operated on Plaintiff's left leg. Then, on October 22, 2022, doctors "revascularized" Plaintiff's left leg, as it was still not receiving enough blood flow. Finally, on October 23, 2022, doctors performed a vascular bypass surgery on Plaintiff's left leg. Unfortunately, the blood flow to Plaintiff's leg was not restored. As a result, it had to be amputated. Moving Defendant Valle was present for multiple operations on Plaintiff, including his initial admission to the

emergency room.

On January 2, 2024, Plaintiff brought suit against Moving Defendant Evan Valle, five other doctors who treated him, and Providence Holy Cross Medical Center. Plaintiff alleges a single cause of action for professional negligence. Plaintiff claims that Moving Defendant failed to restore blood flow to his left leg, which resulted in the need for amputation.

Now, Moving Defendant Valle moves for summary judgment as to this claim of professional negligence.

Discussion

Moving Defendant Evan Valle moves for summary judgment as to this claim of professional negligence, arguing that Plaintiff cannot establish that Moving Defendant breached the applicable standard of care. (MSJ, p. 7:3-8.)

In analyzing a motion for summary judgment, courts must, 1) determine whether the moving party has negated the opponent's claims; and 2) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist, and the moving party is entitled to judgment as a matter of law. (CCP § 437(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741.)

i)

Moving Defendant's Initial Burden

Here, the Court can quickly conclude that Moving Defendant has met their initial burden and that there is no dispute of material fact. When a plaintiff alleges professional negligence, whereby the defendant is accused of failing to adhere to accepted standards of practice, the issues of standard of care and causation may be established only by qualified expert testimony. (Stevenson v. Kaiser Foundation Hosp. (1962) 203 Cal.App.3d 631 [emphasis added].) This is a professional negligence case. (Compl. p. 1.) Therefore, Stevenson applies.

Here, Moving Defendant provides the expert declaration of Dr. Vishal

Bansal. (See Bansal Decl.) Dr. Bansal has been licensed to practice medicine for 20 years. (Id. ¶ 1.) He is a specialist in Surgical Critical and Trauma Surgery and has worked as the Director of Trauma Surgery at Scripps Healthcare and Mercy Hospital since 2015. (Ibid.) Dr. Bansal states that he is familiar with the applicable standard of care for emergency trauma surgery and treatment. (Id. ¶ 2.) Dr. Bansal also states that he has reviewed Plaintiff's medical records and Plaintiff's deposition. (Ibid.)

Based on his review of Plaintiff's medical records, the Complaint, Plaintiff's deposition, Plaintiff's responses to discovery requests, and his extensive training and experience, Dr. Bansal concludes that, "it is my unequivocal expert that Evan Valle, M.D. did not commit any negligent act and/or omission with respect to the care rendered to Anthony Sanchez, and specifically, his care and treatment to a reasonable degree of probability neither caused nor contributed to Mr. Sanchez's injuries" (Id. ¶ 3.)

Under California case law, an expert's opinion rendered without a reasoned explanation of why the underlying facts lead to the ultimate conclusion has no evidentiary value. (Bushling v. Fremont Medical Center (2004) 117 Cal. App. 4th 493, 510.) Here, Dr. Bansal bases this conclusion on specific factual findings, such as, "When Dr. Valle initially saw the patient, it was under an emergency condition. Dr. Valle properly secured the airway and ordered the appropriate orthopedic and vascular consultations. Dr. Valle initially performed a reduction of fracture of left femur. appropriately diagnosed Plaintiff's condition and performed this procedure within the standard of care." (Id. ¶ 22.) Dr. Bansal also explains that, "Dr. Valle was called back to the operating room a few hours later to perform debridement of the devitalized left lower extremity posterior thigh compartment musculature. There was bleeding from the musculature and subcutaneous tissue that he was successful in controlling. He ensured that the incisions and wounds were brought together loosely with skin staples. This was the appropriate clinical decision to allow drainage and to prevent tension the tissue to allow blood flow." (Id. ¶ 23.) Based on these specific facts, the Court concludes that Dr. Bansal's conclusions have evidentiary value. Thus, Moving Defendant has met their initial burden to negate Plaintiff's claim of medical negligence.

ii)

Plaintiff's Shifted Burden

The burden now shifts to Plaintiff to establish a triable issue of fact

as to both breach and causation. In the context of medical malpractice, when a defendant supports its motion for summary judgment with competent expert testimony that there was no breach of the standard of care, or that the doctor did not cause the plaintiff harm, the plaintiff must present conflicting expert testimony to defeat summary judgment. (Jambazian v. Borden (1994) 25 Cal.App.4th 836, 844; Munro v. Regents of University of California (1989) 215 Cal.App.3d 977, 984.)

Here, Plaintiff does not oppose this motion and therefore has not presented conflicting expert testimony. Thus, Plaintiff fails to meet their shifted burden.

For these reasons, the Court GRANTS Moving Defendant's Motion for Summary Judgment.

Conclusion

The Court GRANTS Moving Defendant's Motion for Summary Judgment.

IT
IS SO ORDERED, Moving Defendant TO GIVE NOTICE.

September 2, 2026

Judge of the Superior Court